

9	Tashoff vs. City of San Juan Capistrano 2024-01438234	Motion for Summary Judgment and/or Adjudication Off Calendar
10	Uvina vs. Banda 2025-01501195	Motion to Be Relieved as Counsel of Record The motion by Anthony J. Nunes, of Law Office of Anthony J. Nunes, to be relieved as counsel of record for Luis Uvina, is continued to 10/26/26 at 1:30 PM in Department C11. Counsel is ordered to file a proof of service showing proper service of the moving papers on the client and all parties that have appeared. (Cal. R. Ct. Rules 3.1300(c), 3.1362(d); Code Civ. Proc., § 1013a.) Unless the proof of service is filed by 10/02/26, the motion may be taken off calendar. Counsel for plaintiff is ordered to give notice of the continuance to the client and all parties that have appeared. Motion to Set Aside/Vacate Default Defendants Luis Banda and Maria Banda's motion to vacate and set aside default is granted. Defendants move, under CCP section 473, subdivisions (b) and (d), for an order setting aside the default entered against them on 11/5/25 (ROA 20), The Court finds Defendant should be granted discretionary relief under CCP section 473, subdivision (b). The statute provides, in relevant part, that: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) If a party moves promptly for relief from default, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), "very slight evidence is required to justify a trial court's order setting aside a default." (<i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526, citing <i>Shamblin v. Brattain</i> (1988) 44 Cal.3d 474, 478.) The statute is to be "liberally construed" as "sound policy favors the